

24STLC05012 24STLC05012

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC05012 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE RULING:

Defendant Los Angeles Metropolitan Transportation Authority's

Motion to Compel Plaintiff's Discovery Responses is denied.

Analysis:

Defendant Los Angeles Metropolitan Transportation Authority

("Defendant") propounded Form Interrogatories, Set One and Request for

Production and Inspection of Documents, Set One, on Plaintiff Vilma Soyos

("Plaintiff") on February 5, 2026. (Motion, Smith Decl., Exh. A.) Despite a

meet and confer effort, Plaintiff has not served responses as of the filing of

the instant Motion on May 18, 2026. (Id. at ¶¶3-7 and Exhs. B-E.)

Defendant filed the instant Motion to Compel Plaintiff's

Discovery Responses and served it on Plaintiff through Attorney Sergei N.

Gladkov, Esq. by electronic mail. No opposition has been filed to date.

Discussion

Initially, the

Court notes that Defendant filed combined motions to compel responses with

respect to two separate sets of discovery: (1) Form

Interrogatories, Set One; and (2) Request for Production and Inspection

of Documents, Set One. Filing a request to compel responses to two separate

sets of discovery as a single motion creates the following problems. First, it

negatively impacts the Court's calendar by placing more motions on the calendar

than slots have been provided by the online reservation system. Second, it risks

confusion in the motion papers regarding the arguments and evidence with

respect to each request. Finally, combining multiple discovery sets into a

single motion allows the moving party to avoid paying the requisite filing

fees. Statutorily required filing fees are jurisdictional and "it is mandatory

for the court clerks to demand and receive statutorily required filing fees."

(See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Although

Defendant has been granted a fee waiver in this action, it should still make a

separate motion reservations to address both sets of discovery.

Additionally, the Court finds that the discovery requests

served on Defendant do not comply with Code of Civil Procedure section 94,

which allows only 35 written discovery requests in the Limited Civil Court

unless otherwise authorized by court order or by stipulation. (Code Civ. Proc.,

§ 94, subd. (a); § 95.) Defendant served Plaintiff with more than 35 form

interrogatories alone. (Motion, Smith Decl., Exh. A, pp. 8-10.) Based on the foregoing, the instant discovery

Motion is denied. The Court will not grant a motion to compel discovery

propounded in violation of the Code of Civil Procedure.

Conclusion

Defendant Los Angeles Metropolitan Transportation Authority's

Motion to Compel Plaintiff's Discovery Responses is denied.

Moving party to give notice.